

Rekha Jamwal vs Presiding Officer, Mega Lok Adalat ... on 17 January, 2019

Author: Sindhu Sharma

Bench: Sindhu Sharma

Item No.41

HIGH COURT OF JAMMU AND KASHMIR AT JAMMU
OWP No.64/2019 & IA No.01/2019

Date of order:17.01.2019

Rekha Jamwal Vs. Presiding Officer, Mega Lok Adalat Jammu & ors.
Coram:

Hon'ble Mrs. Justice Sindhu Sharma, Judge.

Appearing counsel:

For Petitioner (s) : Mr. K. S. Pathania, Advocate.

For Respondent (s) :

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| i) | Whether to be reported in Digest/Journal | : | Yes/No. |
| ii) | Whether approved for reporting in Press/Media | : | Yes/No. |

Petitioner has approached this Court against the award passed by the Mega Lok Adalat on 09.11.2009 in a petition under Section 13/15 of the Hindu Marriage Act, 1980.

Petitioner states that since there was no reference to the Lok Adalat in terms of Section 19 of the Jammu & Kashmir Legal Services Authorities Act, 1997 which is mandatory, as such, the Award is bad and, as such, is to be set aside. Petitioner further states that impugned award of granting divorce by mutual consent is required to be quashed since the Lok Adalat lacked jurisdiction to grant the same in terms of the Act. Further Regulation 17(7) of National Legal Services Authority (Lok Adalat) Regulations 2009, also specifically stipulates that 'Lok Adalat shall not grant bail or a divorce by mutual consent'.

Item No.41 Learned counsel states that after the death of petitioner's husband, in April, 2018, she came to know about passing of the award when respondent Nos.3&4 started harassing the petitioner and stating that she is not the legally wedded wife of her husband and her children are not born out of their wedlock, as such, citing the award of the Lok Adalat for reference.

Prima facie a case is made out for showing indulgence. Issue notice to the respondents in the main petition as well as IA, returnable within four weeks. Requisites for service within one week.

List after service is complete.

Meanwhile, subject to objections and till next date before the Bench, the award of the Mega Lok Adalat, Jammu dated 09.11.2009 shall remain stayed.

(Sindhu Sharma) Judge Jammu 17.01.2019 Ram Murti